

Doctrine and Rule of Lenity are not implicated due to the clear language of Section 95465 and 95472 and the inapplicability of Section 95469(a).

Ruling

For the reasons discussed above, the Court **DENIES** Defendant's motion to strike.

18. 9:00 AM CASE NUMBER: MSC21-00513
CASE NAME: STANDEFER VS SIERRA-AT-TAHOE
***HEARING ON MOTION IN RE: COMPLIANCE HEARING (SET BY THE COURTROOM)**
FILED BY:
TENTATIVE RULING:
Summary

Upon review of Plaintiff's Compliance Statement filed on April 23, 2026, the Court finds that the Parties complied with the Final Order Approving Settlement filed on September 10, 2025. The Court hereby orders the release of the remaining 5% in attorney's fees to Plaintiff's counsel. Plaintiff's counsel shall prepare and e-file a conforming order no later than five (5) days from the date of this hearing. No appearance is required at the May 6, 2026 hearing.

19. 9:00 AM CASE NUMBER: MSC21-01757
CASE NAME: MARSHA TILLER VS U.S. BANK
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: VALUATION ONE INC A CALIFORNIA CORPORATION
TENTATIVE RULING:

This hearing was vacated by the moving party. No appearance is required on May 6, 2026.

20. 9:00 AM CASE NUMBER: PS25-1449
CASE NAME: SCOTT JACOBY VS. STEVEN CHAN
***HEARING ON MOTION IN RE: MOTION TO DISMISS THE CASE FOR NON-PAYMENT OF REAL PROPERTY PURCHASE OF DEFENDANTS' SENIORS RETIRENT RESIDENCE**
FILED BY: JACOBY, SCOTT
TENTATIVE RULING:

The Parties and counsel are ordered to appear in person or remotely to provide the court with a status of the proceedings.

21. 9:00 AM CASE NUMBER: PS25-1449
CASE NAME: SCOTT JACOBY VS. STEVEN CHAN
***HEARING ON MOTION IN RE: NOTICE OF MTN AND MTN TO DISMISS THE CASE FOR NON-PAYMENT OF REAL PROPERTY PURCHASE OF DEFENDANTS SENIOR RETIREMENT RESIDENCE; DECLARATION IN SUPPORT OF MTN**
FILED BY: CHAN, STEVEN L.
TENTATIVE RULING:

The Parties and counsel are ordered to appear in person or remotely to provide the court with a status of the proceedings.

Discovery Law & Motion

22. 9:01 AM CASE NUMBER: C24-02254

CASE NAME: LAURENCE GURRIES VS. LASSEN CANYON NURSERY, INC.

***HEARING ON MOTION FOR DISCOVERY ENFORCE DEPOSITION SUBPOENA TO VERIZON WIRELESS SERVICES, LLC FOR PRODUCTION OF DOCUMENTS**

FILED BY: LASSEN CANYON NURSERY, INC.

TENTATIVE RULING:

Summary

Defendants Lassen Canyon Nursery Inc. and Nancy Jimenez (“Defendants”) Motion to Enforce Deposition Subpoena to Verizon Wireless Services LLC for the Production of Documents is **granted** on the condition that Defendants can submit a proof of service showing that the agents for service of process for Verizon were properly served with this Motion and the accompanying papers.

Background

This litigation concerns a traffic accident which occurred on March 9, 2023 near the Benecia Bridge toll plaza on northbound I-680 in Martinez, California. An F-150 pickup truck driven by Defendant Nancy Jimenez collided with a semi tractor-trailer driven by plaintiff Laurence Gerald Gurries. Plaintiff claims he was injured and filed a personal injury action against the defendants.

Defendants served a Deposition Subpoena to Verizon Wireless Services LLS for the production of cellular phone / mobile phone records relevant to the incident. Plaintiff Laurence Gurries (“Plaintiff”) objected to the subpoena and announced that it would file a motion to quash the subpoena.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court’s decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature